

DELIVERABLE 04 · WORKFLOW & COMPLIANCE

Pre-Publication Workflow.

Reg FD / SEC approval flow, content classification, crisis communications protocol, and channel-management guardrails for a publicly traded fusion company.

Prepared by BotMakers Inc. · May 2026 · Version 1.0

Disclaimer.

This document is a working operational framework prepared by BotMakers Inc. to coordinate publishing workflow with American Fusion's securities counsel. It is not legal advice. All Reg FD, Section 5, and disclosure decisions must be made by AMFN's qualified securities counsel. BotMakers' role is to operate within counsel-approved parameters and to flag questionable content before publication, never to substitute for legal review.

Content Classification System.

Every piece of content moves through one of three review paths based on classification. Classification happens at the drafting stage by the BotMakers editor and is verified at the approval stage.

Class	Definition	Review Path	Examples
GREEN	Evergreen, educational, or general-industry content. No mention of AMFN-specific milestones, financial guidance, partnerships, or material events.	BotMakers editor → AMFN designated approver → publish. No counsel review required.	'What is aneutronic fusion?' explainer. IEA AI energy commentary. Reid's posts on public-domain procurement programs.
YELLOW	Mentions AMFN-specific operational progress that has already been publicly disclosed (via prior press release, filing, or website). No new material info.	BotMakers editor → AMFN designated approver → counsel CC for awareness → publish.	Texatron build-progress posts referencing already-disclosed milestones. Restating filed information.
RED	Anything potentially material, forward-looking, or new disclosure: new milestones, financial guidance, listing progress, partnership announcements, supply chain deals, or anything reasonable investors would want before trading.	BotMakers editor → AMFN designated approver → counsel formal review and written approval → publish. Publish only after a corresponding 8-K or press release where applicable.	Hawkins capital-markets posts. OTCQB / Frankfurt listing updates. Helium-3 supply announcements. Any LOI or partnership disclosure.

When in doubt, escalate.

Any post the BotMakers editor is uncertain about defaults to RED. The cost of one extra counsel review is bounded. The cost of a single Reg FD violation is not.

Pre-Publication Workflow.

The five-stage flow every post follows from idea to publication.

STAGE 1

DRAFT

Owner: BotMakers editor

SLA: Per editorial calendar (typically 5–7 days before scheduled publish)

BotMakers editor drafts the post per the editorial calendar. Editor assigns content classification (GREEN/YELLOW/RED) at this stage. Editor self-checks against the Voice & Tone guidelines (Deliverable 01) and the Do/Don't language table.

STAGE 2

INTERNAL REVIEW

Owner: BotMakers strategy lead

SLA: Within 24 hours of draft

Senior BotMakers reviewer verifies voice/tone, fact-checks all citations, confirms classification, and runs a final Reg FD smell test. Anything flagged moves to RED automatically.

STAGE 3

AMFN APPROVAL

Owner: Designated AMFN approver (single named individual)

SLA: Within 48 hours of submission

Single named AMFN approver signs off on substance and voice. For executive posts, the named executive (Nelson, Reid, or Hawkins) is the approver for their own posts. AMFN approver is empowered to request edits or escalate to counsel.

STAGE 4

COUNSEL REVIEW (if YELLOW or RED)

Owner: AMFN securities counsel

SLA: YELLOW: 24-hour CC for awareness. RED: written approval required before publish (typical 3–5 business days)

YELLOW posts: counsel is CC'd and given 24 hours to flag concerns. Absence of objection = clearance. RED posts: counsel provides written approval (email is sufficient) before publish. RED posts that would constitute new material disclosure are held until a corresponding 8-K or press release is on file.

STAGE 5

Owner: BotMakers editor

SCHEDULE & PUBLISH

SLA: Per editorial calendar

BotMakers schedules the approved post per the editorial calendar. Post is published on the scheduled day. BotMakers monitors for 2 hours post-publish for engagement and any unexpected response. Performance logged in Deliverable 05 dashboards.

Reg FD Guardrails.

Operational rules every BotMakers editor follows. These are guardrails, not legal advice — counsel's interpretation always controls.

The Core Rule

Regulation Fair Disclosure (Reg FD) prohibits selective disclosure of material non-public information by a public company to certain market participants (analysts, institutional investors) without simultaneous public disclosure. Social media posts can constitute public disclosure under the 2013 SEC guidance — but only if the company has previously alerted investors that the channel will be used for material disclosure.

Operating Rules for AMFN Channels

- **Default position:** AMFN's owned channels (LinkedIn, X, YouTube, Instagram, Newsletter) are NOT designated channels for material disclosure unless explicitly approved by counsel. Material disclosures go through 8-K and press release first, with social channels amplifying after.
- **Sequencing:** When material information is released, the sequence is: (1) 8-K / press release files, (2) press release goes live, (3) social posts amplifying go live — in that order. Never reverse this sequence.
- **Quiet periods:** No public commentary on financial results, listing progress, or material transactions during any quiet period defined by counsel. Editorial calendar is adjusted to GREEN-only content during these windows.
- **Forward-looking statements:** Any post containing forward-looking statements (projections, guidance, timelines for commercial milestones) is RED by definition and requires counsel approval plus standard forward-looking-statement disclaimer in the post or in the linked content.
- **Engagement responses:** BotMakers editors and executives do NOT respond to investor questions about non-public material info in comments, DMs, or replies. Standard response template: 'Thanks for the question — for material updates please see our SEC filings at [link].'
- **Executive accounts:** Executive personal accounts (Nelson, Reid, Hawkins) are subject to the same rules when posting in their AMFN capacity. Personal posts unrelated to AMFN are out of scope.
- **Newsire continuity:** AMFN's existing IBN newsire relationship continues to handle all SEC-required disclosures. Owned channels supplement, never substitute.

What Constitutes 'Material'?

Per long-standing SEC interpretation: information is material if there is a substantial likelihood that a reasonable investor would consider it important in making an investment decision. Practical examples that are presumptively material for AMFN:

- New customer or offtake agreements
- OTCQB qualification updates, Frankfurt listing progress
- New supply chain agreements (He-3, deuterium, components)
- Independent test results from the Texatron 5 MW unit
- Capital raises, warrant exercises, capital structure changes
- New advisor or executive appointments

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- Material changes to commercialization timeline
 - Government contract awards or significant procurement progress
 - Litigation, regulatory action, or material adverse events

Crisis Communications Protocol.

Five scenarios, with first-30-minute response trees. Adjust per counsel's instruction in any actual event.

SCENARIO	1. Technical Incident at the Kepler Facility
Trigger	Safety event, equipment failure, or significant test setback at the Southlake facility.
First 30 minutes	Operations team handles safety response per facility protocol. BotMakers pauses all scheduled posts immediately (kill switch on calendar). No social activity until comms lead clears.
Comms lead	Brent Nelson, with counsel CC. Statement, if any, drafted by counsel and BotMakers, approved by Nelson and Hawkins, released through press release first, social amplification after.
Ongoing	Daily internal sync until resolved. Public comms only at counsel-approved checkpoints. Resume normal cadence only after written clearance from Nelson and counsel.

SCENARIO	2. Negative Press Coverage
Trigger	Investigative piece, short report, or critical industry analysis published about AMFN.
First 30 minutes	BotMakers monitors and surfaces to Hawkins + counsel within 30 minutes. No immediate public response. Internal Slack/email thread spun up with full Q&A; draft within 2 hours.
Comms lead	Richard Hawkins, with counsel and BotMakers. Response strategy decided within 24 hours: respond, ignore, or correct-the-record.
Ongoing	If responding: response is on-record, brief, fact-anchored, links to official disclosures. Never argue in comments or quote-tweet replies. Consider a long-form rebuttal post on LinkedIn if the coverage is materially wrong.

SCENARIO	3. Misinformation Spreading on X / Reddit / Stocktwits
Trigger	False rumor, pump-and-dump activity, or coordinated misinformation campaign about AMFN ticker or technology.
First 30 minutes	BotMakers monitors and surfaces. Do NOT engage individual accounts. Surface to Hawkins + counsel within 30 minutes if material.
Comms lead	Hawkins + counsel decide whether to issue a clarifying statement (typically through press release first, then social).
Ongoing	If statement issued: short, factual, no engagement with bad-faith actors. If illegal market manipulation suspected, counsel may engage SEC enforcement liaison.

SCENARIO	
4. Executive Account Compromise	
Trigger	LinkedIn, X, YouTube, or Instagram account belonging to AMFN or an executive is compromised, hijacked, or sending fraudulent content.
First 30 minutes	BotMakers attempts immediate password reset and platform recovery. Notifies Hawkins + counsel + IT immediately. Other AMFN channels post a brief alert: 'We're aware [account] is compromised. Disregard recent posts. Working on recovery.'
Comms lead	Richard Hawkins + IT lead.
Ongoing	Forensic review of how compromise occurred. Tighten 2FA across all accounts. Full reset of platform passwords across the channel inventory. Post-incident report to internal team.
SCENARIO	
5. Reg FD Concern Raised Post-Publication	
Trigger	A published post is identified — by counsel, an investor, an analyst, or internally — as potentially constituting a Reg FD violation.
First 30 minutes	BotMakers preserves the post (do not delete; deletion is itself a disclosure event). Surfaces to counsel within 30 minutes.
Comms lead	Counsel — exclusively. BotMakers and AMFN executives take direction from counsel only.
Ongoing	Remediation per counsel: typically a same-day 8-K filing or supplementary public disclosure that brings the previously selective content into compliance. No engagement with the post until counsel directs.

Response Templates.

Pre-approved language for common inbound situations. Personalize lightly; do not improvise on regulated topics.

Standard Templates

Situation	Approved Response
Investor asks about non-public material info in DM or comment	'Thanks for the question — for material updates we direct everyone to our SEC filings, available at [investor relations URL]. Following us here is the best way to know when new filings are posted.'
Procurement officer DMs about Texatron capabilities	'Thanks for reaching out. We'll have someone from our team follow up directly within one business day. Could you share the best email to use?' Then route immediately to AMFN designated procurement contact.
Engineering talent DMs about open roles	'Thanks for the interest. Open roles are listed at [careers URL]. For the [role name] specifically, please apply through the link and mention you saw it here so the team can prioritize the review.'
Reporter / journalist DMs for interview or comment	'Thanks for reaching out. We'll route this to the right person on our team and get back to you within one business day.' Then route to AMFN comms / BotMakers media lead immediately.
Hostile or trolling comment	No response. Do not engage. Document if pattern emerges. Block only in cases of harassment, sustained spam, or clearly bad-faith manipulation attempts — coordinate with counsel before blocking accounts that appear to be coordinated activity.
Legitimate technical critique from a credible voice	Acknowledge briefly: 'Fair point — we've thought about this. Quick answer: [1-2 sentence response]. Happy to go deeper, my DMs are open.' Engage substantively only if the critic is in good faith and the topic is GREEN-class.
Question about helium-3 supply chain specifics	'We're in active strategic supply discussions for both He-3 and deuterium with a global industrial counterparty. Specifics will be disclosed through SEC filings as appropriate.' (Do not name the counterparty or terms unless already disclosed.)
Question about commercialization timeline	'Our public timeline is what is in our most recent filings. We update it through filings as material developments occur. For the current language, see [link to most recent 10-K/10-Q/8-K].' (Do not give new dates.)

Escalation Tree

When in doubt: BotMakers editor → BotMakers strategy lead → AMFN designated approver → AMFN securities counsel. The chain is fast; escalation is a feature, not a failure.

This document is a living working draft. Counsel may modify any aspect of these workflows; BotMakers operates per the most recent counsel-approved version.